

Court No. - 1

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1285 of 2025

Applicant :- M/S S.K. Rice Mill Through Proprietor Santosh Kumar Mishra

Opposite Party :- Sri Aditya Pandey

Counsel for Applicant :- D.K.Tripathi

Hon'ble Salil Kumar Rai,J.

The present contempt application has been filed pleading willful disobedience of the order dated 23.1.2025 passed by this Court in Writ-C No. 40648 of 2024.

It has been stated that no orders have yet been passed by the opposite party.

Issue notice to the opposite party fixing 23.04.2025 on which date the opposite party shall either file a compliance affidavit indicating full compliance of the order passed by the Writ Court or shall be personally present in the Court.

List in the daily cause list on **23.04.2025.**

Order Date :- 26.3.2025

Anurag/-

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Hon'ble Salil Kumar Rai,J.

Shri Sushil Kumar Pandey, counsel representing the opposite party states that the opposite party has undergone surgery, therefore, could not appear before this Court as sought in the previous order.

Shri Sushil Kumar Pandey, prays for fifteen days further time to comply with the order passed by the Writ court.

In view of the aforesaid, the matter is adjourned for the day.

List again on **5th May, 2025**, on which date the opposite party shall either file a compliance affidavit showing full compliance of the order passed by the Writ Court or shall be personally present in the Court.

It is clarified that in case, the present opposite party would be unable to come because of medical reasons, In-charge Executive Engineer, Electric Distribution Division, Gopiganj, Bhadohi shall appear before this Court on behalf of opposite party.

A copy of this order be communicated to the In-charge Executive Engineer, Electric Distribution Division, Gopiganj, Bhadohi by the Registrar (Compliance) within 24 hours.

Order Date :- 23.4.2025

Vipasha

Court No. - 1

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Opposite Party :- Sri Aditya Pandey

Counsel for Applicant :- D.K.Tripathi

Hon'ble Salil Kumar Rai,J.

In pursuance to the previous order passed by this Court, Shri Sushil Kumar Pandey, counsel representing the opposite party has filed an affidavit of the In-charge Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, Gopiganj, Bhadohi stating that an order dated 30.04.2025 has been passed rejecting the claim of the applicant for electricity connection.

The counsel for the applicant argues that the order dated 23.01.2025 passed in Writ - C No. 40648 of 2024, which is the subject matter in the present contempt application, directing the Executive Engineer to give electricity connection to the applicant within a period of four weeks was passed after the counsel for the Purvanchal Vidyut Vitran Nigam Ltd. had stated in the Court that electricity connection would be given to the applicant, therefore, the order dated 30.04.2025 cannot be used as a pretext to avoid compliance of the order passed by the Writ Court.

Contention of the counsel for the applicant is not accepted.

The concession given by the counsel for the Vidyut Vitran Nigam Limited and its officers was only to provide electricity connection in accordance with law. The order dated 30.04.2025 records that paragraph nos. 4 (i) and 4 (ii) of the Electricity Supply Code, 2005 prohibits grant of any electricity connection to the applicant as there are dues on the brother of the applicant on the electricity connection given on the land on which S.K. Rice Mills, of which the applicant is a proprietor, is established.

In view of the aforesaid, the order dated 30.04.2025 is not in disobedience of the order passed by the Writ Court.

The counsel for the applicant also argues regarding certain illegalities and legal errors in the order dated 30.04.2025. The illegalities argued by the counsel for the applicant relates to the merits of the case which cannot be considered in contempt jurisdiction.

The applicant has the remedy to challenge the said order on merits before the appropriate authority.

The application is ***disposed of*** and consigned to records. Notice issued to the opposite party is discharged.

Order Date :- 5.5.2025

Vipasha